

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Tuesday, July 28, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-06305	Grace Tovar vs Jacob Martinez
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Petition for Minor's Compromise

The petition for minor's compromise is GRANTED.

The court will sign the orders lodged with the court on June 22, 2026.

A status conference is set for December 1, 2026, at 8:15 a.m. in Courtroom 8, for confirmation of deposit of the minor's funds into the blocked account.

If Petitioner files the Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account (MC-356) at least five court days before the hearing, the status conference will come off calendar.

25CV-01617

Melvin Lawrence et al. vs General Motors, LLC

Demurrer to Plaintiff's Complaint

Defendant's demurrer to Plaintiff's complaint is SUSTAINED IN PART and OVERRULED IN PART.

Defendant's demurrer to the First, Second, Third, and Fourth causes of action based on the causes of action being time barred by the statute of limitations is OVERRULED.

Plaintiff has alleged a tolling of the statutes. "[W]hen the relevant facts are not clear such that the cause of action might be, but is not necessarily, time-barred, the demurrer will be overruled." (*Citizens for a Responsible Caltrans Decision v. Department of Transportation* (2020) 46 Cal.App.5th 1103, 1117.)

Defendant's demurrer to the Fifth cause of action is SUSTAINED, on the basis of failure to state facts sufficient to constitute a cause of action.

Here, Plaintiff does not allege enough facts to support a fraudulent inducement concealment cause of action. For example, and not exhaustive, the complaint (1) fails to sufficiently allege the required transactional relationship between Plaintiff and GM; (2) fails to allege sufficient facts identifying the specific marketing statements that were misleading and that were relied upon by Plaintiff; and (3) fails to allege sufficient facts regarding personnel, conversations, or content of omissions at the point of sale.

Plaintiff must file an amended complaint within ten (10) days of this court's order.

26CV-01423

Maria Vera vs Moises Sanchez, et al.

Application for Default Judgment Against Defendant Moises Vera Sanchez

VACATED. Pursuant to Code of Civil Procedure section 764.010 an evidentiary hearing is required.

Plaintiff is to call the clerk's office and request a hearing date. Default prove-up hearings are held Monday at 1:30 p.m. in Courtroom 8.

26CV-03279

James Carrera vs George Espindula

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing on Respondent was filed with this court on July 22, 2026.
